

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 17, 2026, AT 8:30 A.M.

- Page 10, Prayer for relief No. 5: “For punitive damages, pursuant to Civil Code §§3294 in amounts sufficient to punish Defendants for the wrongful conduct alleged herein and to deter such conduct in the future.”

Defendant’s motion is denied in part as to the remainder of the challenged paragraphs.

Plaintiff shall file and serve an amended complaint on or before **September 28, 2026**.

17. S-CV-0057201 WEBER, ANNE v. WELLS FARGO BANK

The demurrer is dropped from calendar as moot in light of plaintiff filing a first amended complaint with the court.

18. S-CV-0057330 IN RE THE PETITION OF VARDANYAN, SARA

Petition for Approval of Minor’s Compromise Claim

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition, attachments, and supplemental declaration, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

19. S-CV-0057381 GREENHOUSE, GISELA v. MOLLENKOPF, KRISTINE

Defendant’s Special Motion to Strike Plaintiff Gisela Maria Greenhouse’s Complaint Pursuant to C.C.P. § 425.16 (Anti-SLAPP Motion)

Defendant moves to strike the lone cause of action for “Intentional Tort” alleged in plaintiff’s complaint pursuant to Code of Civil Procedure section 425.16.

A motion brought under Code of Civil Procedure section 425.16, also known as an anti-SLAPP motion, is a procedural remedy designed to dispose of lawsuits that are brought primarily to chill the valid exercise of a party’s constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); see also *Sylmar Air Conditioning v. Pueblo Contracting Svcs., Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.) In determining whether an action or claim is a SLAPP suit subject to a special motion to strike, the court evaluates first whether the claim arises out of the defendant’s protected speech or petitioning activity, and second whether plaintiff can

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show a probability of success on the merits. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88-89.) Defendant has the burden of proof to show that plaintiff's claims arise from defendant's exercise of free speech or petition rights as defined in Code of Civil Procedure section 425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) "When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) The second step shifts the burden to plaintiffs to establish a probability of prevailing on the claim. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458-459.) At the second step "the court's responsibility is to accept as true the evidence favorable to the plaintiff [citation] and evaluate the defendant's evidence only to *determine if it has defeated that submitted by the plaintiff as a matter of law*. [Citations.] The trial court merely determines whether a prima facie showing has been made that would warrant the claim going forward." (*Blanchard v. DIRECTV, Inc.* (2004) 123 Cal.App.4th 903, 918 [emphasis in original].)

Defendant argues the "Intentional Tort" cause of action arises from acts by defendant in furtherance of her right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue. Code of Civil Procedure section 425.16(e) further defines "acts in furtherance of a person's right of petition or free speech" as used in section 425.16(b) to include:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

Defendant's motion appears to invoke section 425.16, subdivisions (e)(1) and (2).

In assessing whether the first prong has been met, the court analyzes whether defendant's acts underlying plaintiff's cause of action *itself* was an act in furtherance

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of the right of free speech, not simply whether protected activity took place. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78; *Navellier v. Sletten, supra*, 29 Cal.4th at 89.) Where, as here, subdivision (e)(3) is invoked, defendant must also demonstrate the alleged statements were made in connection with an issue of public interest.

Here, defendant satisfies her burden as to the first prong because she presents evidence the alleged statements to third parties were made to law enforcement and are thus made in connection with an official proceeding authorized by law subject to SLAPP protections. (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941.)

The burden therefore shifts to plaintiff to establish the challenged claim based on the protected activity is legally sufficient and factually substantiated. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) However, plaintiff does not meet her burden as to “Intentional Tort” cause of action.

Accordingly, defendant’s motion is granted without leave to amend.

Defendant may file a separately noticed motion for attorney’s fees. (Code Civ. Proc., § 425.16, subd. (c)(1).)

Defendant’s Demurrer to Plaintiff Gisela Maria Greenhouse’s Complaint

Defendant’s demurrer is overruled as moot in light of the court’s ruling granting defendant’s special motion to strike without leave to amend.

20. S-CV-0057861 IN RE THE PETITION OF WEAVER, LUCAS

Petition for Approval of Minor’s Compromise Claim

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)